

Bihar Registration Rules, 2008

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[S.O. No.-I/M1- 229/2006-2653. - In exercise of the power conferred by clause \(a\) and \(aa\) of sub Section \(1\) of Section 69 of the Registration Act 1908 \(as amended by Registration and other related laws \(amendment\) Act 2001 the Inspector General of Registration with the approval of the Government of Bihar makes following Rules: -](#)

[Chapter - I 1. Short Title Extent & Commencement.](#)

[\(1\) These rules may be called the Bihar Registration Rules 2008.](#)

[\(2\) It shall extend to the whole of the State of Bihar.](#)

[\(3\) It shall come into force with effect from the date of notification.](#)

[2.](#)

Definition.

- In these rules unless there is any thing repugnant in subject or context -

(i)

"The Act" means The Registration Act 1908;

(ii)

"Appendix" means an Appendix to these Rules;

(iii)

"District Sub Registrar" means the Sub-Registrar at the district headquarter whose office is amalgamated with the office of the Registrar and having the powers of the Registrar delegated from time to time;

(iv)

"Registration officer" includes both a District Sub Registrar and a Sub-Registrar,

(v)

"Minimum Value Register" to be referred herein as "MVR" means the Guidelines register of minimum estimated value of land as prepared under the Bihar Stamp (Prevention of under-valuation of Instruments) Rules 1995 and Bihar Stamp (Prevention of Under Valuation of Instruments) (Amendment) Rules 2006 for implementation of Sec.. 47-A of the Indian Stamp Act 1899;

(vi)

"Computer" means computer as defined u/s 2(1)(i) of the Information Technology Act 2000;

(vii)

"Computer Operator" means an employee of the Registration Office State level Society and District level Societies BOT operator or Hardware supplier who works on computer under the instructions of the Registering Officer;

(viii)

"Computer system" means computer system as defined u/s 2(1)(l) of the Information Technology Act 2000;

(ix)

"Archival" means capturing data including images on the electronic storage media like CD DVD the tape the Hard Disk and the like with the intention of preserving the same for long periods and for retrieving in contemporary electronic system whenever required and includes re-archiving and includes preservation of Books and Fee Books prepared manually from hard copies;

(x)

"CD" or "Compact Disk" or "DVD" means an electronic record or electronic storage device on which data including images can be stored in an electronic digital form and may be transferred into contemporary electronic system;

(xi)

"electronic record" means data record or data generated image or sound stored received or sent in a form of microfilm or computer generated microfiche;

(xii)

"Hardware" means the electronic devices like Computer Scanner Printer CD DVD Web Camera Biometric Device and other devices used to capture store and process data in digital form and include generator and other devices for providing uninterrupted power supply to the system;

(xiii)

"Scanner" means an electronic device used in conjunction with a computer and a suitable software to convert documents on paper into electronic digital images to be stored on electronic media and to be retrieved when required and the words 'scanning' and 'scanned' shall be construed accordingly;

(xiv)

"Software" means a set of computer programmes or coded instructions given to the computer system to make the latter perform different predetermined functions and to generate the desired output and includes software for operating system and for managing database;

(xv)

"Web Camera" and "Biometric Devices" includes a digital camera for taking photographs in electronic digital images and finger print scanner respectively;

(xvi)

"PDF files" mean files generated on computer portable document format capable of not being tampered after being

written;

(xvii)

"District level Societies" mean Societies registered under Societies Registration Act 1860 in each district for the purposes of supplying hardware meeting the expenditure of computerization activity and ensuring smooth functioning of computerized system of registration;

(xviii)

"State level Society" or "BISCORE" means the Society registered under Societies Registration Act 1860 at state level and headed by a state government official of rank not below that of the Secretary to the state government for the purposes of preserving and maintaining the Software used in the process of registration and for providing guidance and supervision to the District level Societies.

3.

Territorial jurisdiction.

(1)

The jurisdiction of a Sub Registry office shall be on the basis of mouzas specified by revenue thanas revenue circles and the district.

(2)

The sub registry office situated at the District headquarter and amalgamated with the office of the Registrar shall be known as District Sub Registry office.

(3)

The state government in public interest by notification may: -

(i)

remove a Sub Registry office from one place to establish it at other place or,

(ii)

create a Sub Registry office at any place if so required.

Chapter - II 4. Registration of documents.

(1)

The registration of the documents shall be done through a computerized process using software prescribed by the Department of Registration.

Provided that manual registration may continue till computerized registration process does not start in a registration office.

Provided further that after the registry office adopts computerized process of registration manual registration shall not be undertaken in any circumstance.

(2)

The stamp duty registration fee and all other payable fees shall be paid by the parties through the Challan prescribed in Form no-1 of Appendix-A.

(3)

District level Society specially created for this purposes and headed by the Collector-cum-District Registrar ex-officio shall undertake financial aspects of computerization activity. Inspector of Registration offices (IRO) of the concerned Division and all Registering Officers in the district shall be its ex-officio members. District sub Registrar will be its ex-officio member-Secretary. The IRO shall be ex-officio vice-chairman of the executive committee of the society.

(4)

A society shall be registered at the State level for technical support and guidance to the district level societies. The Assistant Inspector General of Registration in-charge of computerization shall be its Member-Secretary.

(5)

The State level society shall be responsible for maintaining the software procured by the state government for use in the computerized process of registration. No other software shall be utilized for the registration process.

(6)

A service charge shall be charged for each page of the document registered by the district level society at the rate decided by the Department of Registration from time to time. The expenses on hardware consumables and other incidental items shall be met from the amount collected as service charge. The remaining amount shall be transferred to a State level society for meeting the objectives of the State level society and the District level societies:

Provided that there may be different service charges for different districts.

(7)

The hardware for computerized registration system shall be procured on hire basis by the District level society under the overall guidance of the State Level society:

Provided that it will be permissible to purchase occasional hardware for augmenting the efficiency of system taken on hire basis.

(8)

Service charge shall also be deposited by the parties in the bank account of the District level society through the composite challan mentioned in sub-rule (2) above.

5.

Conditions of admissibility.

- The details of land and property as are referred to in Rule 3 of the MVR Rules shall be deemed to be sufficient description for identification of property under Section 21 of the Act.

6.

Preparation of the documents.

(1)

The parties shall be at liberty to get their documents prepared either on Stamp paper or on plain A-4 size paper of the standard of Royal Executive Bond paper. All enclosures maps and plans shall also be in the size of A-4 size Bond Paper.

(2)

Section 68-A(2) of the Act provides for the document writing by the advocates pleaders and mukhtars in addition to by the document writers licensed for this purpose. The parties shall also be at liberty to draw up their documents themselves.

Explanation. - The Registration Department may also make standard formats available to the public for commonly used instruments either directly or through some agency.

Chapter - III 7. Presentation of documents.

(1)

The document shall before being presented before the Registering Officer u/s 32 be placed along-with its enclosures and the party's copy of the challan of payment before the computer operator authorized for this purpose. The computer operator shall enter data as required in Appendix--B of these Rules and check the availability of enclosures as required in Appendix- C and shall process it through the software provided for this purpose.

(2)

The computer operator shall on one hand generate a draft memo of presentation for the assistance of the presentient and on the other hand shall generate a draft of endorsements required by Registering Officer for his assistance.

(3)

The memo of presentation shall be in the form as mentioned in Appendix-B of these Rules and shall clearly indicate the stamp duty registration fee and other fees required under law to be paid by the parties for registration as also the amount actually paid by the parties.

(4)

If the amount paid by the parties is less than the amount to be paid under law the memo of presentation shall indicate the deficient amount and the party shall be expected to pay it again in the bank in the same manner as prescribed in sub-rule (1). In such cases on presentation of the supplementary challan as a proof of payment of the remaining amount the computer operator shall enter the same and generate fresh memo of presentation for the party.

(5)

The operator shall return the memo of presentation along with the document and its enclosures to the party for presentation before the Registering Officer u/s 32 of the Act. The presentient shall sign the memo of presentation and present the document along with it to the Registering Officer.

(6)

The Registering Officer shall cause a receipt generated under Section- 52 of the Act in Form--2 of Appendix--A and be provided to the presentient from the computer operator.

8.

Procedure in case of presentation u/s 25 or appearance u/s 34.

- In cases where the registrar permits the presentation of the instrument with fine after four months as prescribed in Section-25 or permits appearance of the executant under proviso of Section-34 the presentient or the executant which ever is the case shall submit an application before the Registering Officer stating the cause of delay who shall forward it to the District sub registrar on the same day. The Registering Officer shall dispose of such petition for delayed presentation and/or the admission of execution instantly where after the document shall undergo the procedure of computerized registration.

9.

Registration of documents.

(1)

On presentation of the document the Registering Officer shall check as to whether the document has been classified correctly and shall verify online from bank's computer as to whether the amount mentioned in challan has actually been paid. He shall further examine that --

(a)

the enclosures required under law have been provided,

(b)

the challan and the stamp papers are genuine,

(c)

the document is admissible for registration under Act and the Rules,

(d)

the parameters of urban property given are prima-facie acceptable,

(e)

there is no inter-lineation blanks erasures or alterations in the document.

Provided that till on-line computer connectivity is available the Registering Officer shall make alternative arrangement for cross verification of the deposits.

(2)

If the presentient chooses to present the document with stamp duty less than that permissible as per MVR the Registering Officer shall refer the case to the IRO exercising the delegated authority of the collector u/s 47-A of the Stamp Act.

(3)

If the Registering Officer is satisfied that the document is admissible under the Act and the Rules it satisfies all the requirements mentioned in sub rule (1) and the stamp duty has been paid as per Schedule 1-A of the Indian Stamp Act,1899 the digital photograph and the finger-prints of the parties and photograph and the thumb impression of the identifiers shall be captured on the back of the first page and if necessary continued on the back of the subsequent pages of the document.

(4)

The Registering Officer shall register the document if all the executants appear and admit their execution. He shall sign the endorsements of admissibility and endorsement u/s 52 58 and 60 in Form-3 in Appendix-A simultaneously and affix his signature on the front of each page of the document along with his seal.

(5)

Where all the executants do not appear the Registering Officer shall sign the endorsements except that required under Section- 60 with respect to the persons who have appeared. In such cases if the other executants appear and admit their execution within the time prescribed u/s 34 the Registering Officer shall at that later point of time sign the endorsements under Section-58 with respect to them after all executant's appearance and admission of execution by all executants shall also sign endorsement u/s 60. In such cases an additional sheet in Form-3 of Appendix-A shall be got generated through the computer for the use of Registering Officer.

(6)

The document so registered shall be forwarded to the computer operator and the enclosures shall be forwarded to the clerks responsible for their maintenance.

(7)

A consolidated gist of all endorsements in Form no-4 of Appendix-A shall be generated on the first page of the

registered document below the impression of stamp or on the top of it if the document is on plain paper. The gist shall necessarily contain the name of the Registering Officer date of registration Book number and the page numbers of the Book on which the document has been registered.

(8)

The registered document shall be forwarded to the computer operator in-charge of scanning the document that shall scan the entire document and print a hard copy of the registered document.

(9)

The computer operator shall make an endorsement- 'scanned by me' on the last page of the document and shall put his signature and date as a proof that he has scanned the document. He shall also make a similar endorsement and sign it on the hard copy.

(10)

Each hard copy of the registered document shall be certified by the Registering Officer to be a true copy of the electronic record at the end of the day.

10.

Maps and Plans.

- The Registering Officer shall write the deed number Book number and year on the maps and plans enclosed with the document before the document is scanned.

11.

Prompt return of the document after registration.

- As soon as the document is registered and scanned it shall be returned to the presentient or person authorized by him for this purpose in writing on submission of receipt issued under Rule 7(6). The office shall keep the receipt in its record.

Explanation 1. - Every endeavour shall be made to return the registered document to the presentient after scanning it on the same day preferably within 20-30 minutes.

2. In exceptional cases where the presentient requests in writing the registered document may be returned to a person nominated by him for this purpose on submission of receipt issued under Rule 7(6)

12.

Identification of the executant.

- The identification of the executant shall be done preferably by one of his co-villagers whose identity may be verified by any of the following documents --

(i)

Voter's identity card,

(ii)

Ration card,

(iii)

PAN card,

(iv)

Motor vehicle license:

Provided that a licensed document writer of that office may also identify an executant.

13.

Signature of illiterate Person.

- When a person who cannot write shall sign his name by means of a mark or by touching the pen his name shall be recorded at length and the writer of the name shall also sign his name and put his own signature in attestation that the mark was affixed or the pen touched in his presence.

14.

Procedure of registration of documents presented in duplicate triplicate copies etc.

- Where two or more than two copies of the same document is presented for registration at the same time each document shall be separately registered and scanned in the same manner as original one following the procedure described in Rule 7 & 9.

15.

Procedure of re-registration of documents.

- A document tendered for reregistration shall be treated in all respects as if it were a new document and shall be

registered and scanned afresh following the procedure described in Rule 9.

16.

Registration at a place other than the office.

(1)

Whenever the Registering Officer is required to attend to the parties at a place other than his office under the provisions of Section- 31 33 and 38 he shall himself attend the party on payment of fees prescribed in article J and K of the Table of Fees and take the photograph and finger prints and the admission of execution of the document manually or through the mobile computer unit.

(2)

Such documents shall also be registered through the procedure as prescribed for computerized registration except to this extent immediately after being brought to the office.

17.

Enquiry by the Registering Officer under MVR Rules.

- The Registering Officer is expected to get an enquiry made under Rule 4(4) of MVR rules of the information furnished in all instruments of conveyance registered by him with respect to details of land and property and if it is found that any wrong information has been given with a view to evade the stamp duty he shall refer the case to the Collector under Rule 10 of the MVR rules.

18.

In cases in which the Registering Officer is interested personally.

(1)

The document in which a sub-registrar is interested personally either directly or indirectly shall be registered by the District sub-registrar only.

(2)

The document in which a District sub-registrar is personally interested directly or indirectly shall be registered by a sub-registrar deputed by the District Registrar to register that document specifically.

Chapter - IV 19. Refusal of duly presented document.

- A duly presented document may be refused for registration under following circumstances: --

(i)

If the description of identification of the property as defined in Rule-5 has not been given as required under the Act and Rules.

(ii)

If the executant denies execution (Section 35).

(iii)

If the executant fails to appear and admit execution (Section 34).

(iv)

If the person by whom the document purported to have been executed were dead and his representative or assign deny execution (Section 35).

(v)

If the person purporting to have executed the document appear to be a minor an idiot or a lunatic (Section 35).

(vi)

If the Registering Officer is not satisfied by the identity of the person appearing before him claiming that he has executed the document (Section 35):

Provided that a document shall not be refused under this clause unless the party fails to prove his identity within the time allowed under Section 34.

(vii)

If the Registering Officer is not Satisfied of the truth of the allegation that a person who executed the document is dead (Section 35):

Provided that a document shall not be refused for registration under this clause unless the party fails to prove the death of the executant within the time allowed in Section 34.

(viii)

If the admitting agent's power-of-attorney has not been made in accordance with the Act or if an alleged representative

or assign has failed to prove his status (Section 35).

(ix)

If the parties fail or refuse to mention the additions of executants and claimants.

(x)

If the prescribed fee or fine has not been paid under Section 25 34 and 80 of the Act.

(xi)

If a document is said to be executed by a deaf and dumb person who does not understand the transaction nor express himself by signs or in writing.

(xii)

Where a person admits his signature to a document but states that he signed the paper when it was blank and no document was written thereon.

(xiii)

If a deed of surrender of lease which claimed exemption from stamp duty because the original lease was so exempt is presented and the party refuses to produce the original lease or a certified copy of it in order to satisfy the Registering Officer that the document is either properly stamped or not liable for stamp duty.

(xiv)

Where any or some of the representatives of a deceased executant deny execution while others admit it registration of the document shall be wholly refused subject to the provisions of Section 73 of the Act.

(xv)

On refusal or neglect to appear on an appointed date after services of summons under Section 36 of the Act.

20.

Reasons of refusal to register to be recorded.

(1)

The Registering Officer while refusing the registration of a document shall clearly state the reasons of refusal in his own hand and the same shall be recorded in the computer on the same day. The serial number of such refusals shall be numbered consecutively for a calendar year and shall be kept as Book no- II. A printout of the order shall also be taken from the computer to verify that it has been entered in the computer correctly.

(2)

The Registering Officer after recording the refusal in Book no- II shall immediately communicate the same to the presentient of the document either by post or by any other reliable means.

(3)

Records of refusal in Book no-II shall be in Form-5 in Appendix-A.

21.

Procedure on failure of the executant to appear within four months from execution of the document.

(1)

When a document has been presented to a sub-registrar for registration within the period prescribed by Section 23 namely within four months from date of execution and the executant fails to appear to admit execution within that period the sub-registrar shall immediately after the expiry of said period record a formal refusal to register for being entered in Book-II leaving it to the parties to appeal to the Registrar under Section 72 within thirty days if they think proper Provided that the Sub-Registrar shall not record such an order of refusal if the person presenting the document or claiming under it has before the expiry of the said period initiated proceedings under Section-36 to procure the appearance of the executant or has taken steps under Section 38 for his examination.

(2)

In the case of an appeal under Section 72 mentioned in sub rule (1) the Registrar shall not pass an order directing the Sub-Registrar to register the document unless it is shown on the appearance of the executant before the Registrar that his non-appearance before the Sub-Registrar within the period prescribed by Section 23 was due to urgent necessity or unavoidable accident. If the Registrar passes such an order a fine shall be imposed as provided in the proviso to Section 34(1).

(3)

In the case referred to in the proviso to sub rule (1) the Registrar shall on receipt of the Sub-Registrar's report direct the document to be kept pending the disposal of the proceeding initiated under Section 36 or under Section 38 but not for a

period exceeding eight months from the date of execution.

Chapter - V 22. Indexes.

(1)

Indexes No. I II III and IV shall be automatically generated by the computer. They shall be maintained in Form numbers I II III and IV of Appendix-D.

(2)

The pages of indexes shall be numbered serially and shall be kept in English.

(3)

Memoranda and sale certificates shall also be indexed in the manner as provided in sub rule (1) and (2) of this rule above.

23.

Memoranda of documents.

(1)

The memoranda required by Section 66 of the Act shall be electronically generated and sent to the concerned sub-registrar in Form No.- 10 in Appendix- E in such a way that it reaches him on the same day.

(2)

The concerned sub registrar shall preserve it in a separate file to be called Memoranda File.

24.

Supplementary Documents.

(1)

A registered document of sale mortgage or settlement can be rectified for an error or omission by a supplementary agreement if it does not change the document materially.

Explanation. - Change or addition in the name of any party; change or addition in boundary location or extent of the property and change in the consideration amount of the instrument shall be deemed to be a material change in the document.

(2)

A supplementary document rectifying a registered document shall be registered only if presented with original document and when all certified copies issued are available before the Registering Officer.

(3)

The Registering Officer shall exercise his authority under Section 84 of the Act for procurement of all such certified copies.

(4)

The Registering Officer shall make endorsement regarding the gist of the rectification not only in the book preserving the copy of the document but also on the original document and on the certified copies of the parties simultaneously. Registering Officer shall also supplement the information in the database and will flag the pdf file of the original document in the concerned CD for not being copied without the copy of supplementary document:

Provided that such rectification deed shall not be registered after one year of the registration of the original document.

25.

Endorsements.

- All endorsements shall be made in the following forms --

(1)

Following four endorsements,

(a)

Certificate of admissibility under Rule-5 in Form-3(a)

(b)

Endorsement under Section 52 in Form-3(b)

(c)

Endorsement under Section 58 in Form-3(c) and

(d)

Endorsement of registration under Section 60 in Form no-(3d) of Form No- 3 in Appendix-A shall be on one sheet of the document. This sheet of endorsement shall be an essential part of the document and shall be enclosed after the last

page of the document and shall be scanned with the original document.

(2)

In addition to the above endorsements a summary of all the endorsements in Form no.- 4 in Appendix- A shall be printed on the front page of the document.

(3)

Every visit under Rule-18 shall be made in Form no-6 in Appendix-A and shall be written on the back of the Second sheet of the document.

(4)

Endorsement for registration of wills and authority to adopt under Section 41 shall be in Form no- 7 in Appendix-A.

(5)

When a sealed cover containing a will is opened the endorsement of opening shall be in Form no- 8(a) in Appendix- A and when sealed cover containing a will is opened under an order of the Court the endorsement shall be recorded in Form no-8(b) in Appendix-A.

26.

Administration and record of oath.

(1)

The discretion reposed in the Registering Officer by Section- 63 to administer oath shall not be exercised unless he doubts the truth of any verbal statement made to him.

(2)

An oath or affirmation administered by a Registering Officer shall be administered according to the form of oath or affirmation prescribed by the High Court of Judicature at Patna for witnesses under Section- 7 of the Indian Oaths Act (X of 1873) and reproduced in Form no-9 in Appendix-A.

(3)

Statements made on oath shall not be recorded on the document to which they relate but shall be recorded on a separate sheet of paper and a note to the effect that the statements have been so recorded shall be endorsed on the document it self.

Chapter - VI 27. Provisions of Power of Attorney.

(1)

A power of attorney shall not be recognized as authorizing an agent to act on behalf of a principal under the Act unless it contains an express or implied authority in that behalf.

(2)

Powers of attorney that contains or imply an authority to appear in a registration office to present documents for registration under Section-32 on behalf of the principal or to admit the execution of documents under Section- 34 executed by the principal must be authenticated under Section- 33(a).

(3)

Endorsements on authentication of power of attorney shall be in Form no- 10 in Appendix-A.

(4)

A Register of Power of Attorney (Authentication) shall be maintained in Form No.- 13 in Appendix- A.

28.

Endorsement when a special power of attorney is used.

- When ever a special Power of attorney is used in registration offices for the purposes of Section- 32 or Section- 34 an endorsement shall be made upon it in Form no-11 in Appendix-A and it shall be returned forthwith to the party by whom it was presented and after the inspection of it the Registering Officer shall return the power of attorney to the party by whom it was presented.

29.

Procedure with regard to Wills.

(1)

A will in a sealed cover shall not be received for deposit except otherwise prescribed by Section- 42. After deposit of the sealed cover the district Sub Registrar shall give a computer generated under Section- 52 to the depositor.

(2)

The Registrar shall explain to every person depositing a will that no steps will be taken by the government to ascertain

the date of the testator's death or to communicate the beneficiaries after his death and a note to that effect shall be given on the receipt as referred above.

(3)

The Registrar shall transcribe in Register Book no-5 the name and status of the depositor name of the person identifying the depositor the year/ month/ day and hour of deposit of the sealed cover and any other legible inscription which may be on the seal of the cover.

(4)

The sealed cover shall be then kept and retained by the Registrar in the safe custody in the office.

(5)

If the testator who has deposited such sealed cover wishes to withdraw it he shall apply either personally or by authorized agent the Registrar if he is satisfied that the applicant is actually the testator or his agent shall deliver the cover accordingly.

(6)

When such copy has been made the Registrar shall re-deposit the original will.

(7)

If on the death of a testator the application is filed under sub-rule (5) and the Registrar is satisfied that the testator is dead he shall in the presence of the applicant open the cover and on payment of prescribed fee the contents of the will shall be copied in Book No-III.

(8)

When a sealed cover is opened under Section-44 the fact shall be noted in Register Book No- V in Form No.- 14 in Appendix- A by the Registrar and shall be signed and dated by him. If the sealed cover is opened under an order of a Civil Court this fact shall also be noted in the register.

(9)

If any Court orders for production of a sealed cover containing a will the Registrar shall without opening the sealed cover shall send it to the Court and shall make an entry of the fact in the register.

30.

Revocation of wills and authority to adopt to be registered in Book no-III.

- Revocation or cancellation of a will or an authority to adopt shall be registered in Book no-III fee being charged under Article-C of the Table of Fees.

Chapter - VII 31. Authentication of Register Books.

(1)

No corrections shall be permissible in the hard copies as generated from the computer.

(2)

The hard copies of the registered documents shall be bound in the form of Books as mentioned in Section-51 of the Act.

(3)

Each register book shall be covered by a plain sheet of paper before being bound and the following certificate shall be recorded on it by the Registering Officer: -

"This book contains.....pages consecutively numbered and it also contains certified hard copies of document numbers..... to..... registered in this office."

(4)

A certificate shall also be given on the CDs of the electronic records in the following manner: ----

"This CD contains pdf files of document numbers.....to.....of vol no. - to - of book no.....for the year..... registered at S.R.O-----."

32.

Application for searches and copies.

(1)

Any application to make a search in any book or to obtain a certified copy from the Books or records in a sub-registry office or in the office of the District Registrar shall be made in Form No-2 in Appendix-E along with the copy of the challan indicating payment of prescribed fees as per the Table of Fee.

(2)

The computer operator specially authorized for this work shall give an acknowledgement to the applicant attached with

the application under sub rule (1) above

(3)

The computer operator shall make required search and /or print the copy of from the relevant pdf file and after putting his signature and date and forward it to the registering officer:

Provided that certified copies of the records not on computer shall be prepared manually through photocopy by the staff authorized for this purpose .

All such applications shall be numbered serially from January to December each year and shall be kept and preserved in a separate file.

(4)

If the required pdf file is not in the computer then the registering officer shall cause call it from the office and shall make it available to the computer operator.

(5)

All such applications shall be numbered serially from January to December each year and shall be kept and preserved in a separate file.

(6)

The computer operator enter the details of searches made and copies issued in the register maintained in Form no--3 in Appendix--E in the computer.

(7)

The registering officer shall sign each page of the certified copy before delivering it to the applicant.

33.

Supply of Information to officials for public purposes.

- Information and certified copies required by any court the officials of the State Government and the Central Government for bona-fide public purposes shall be furnished on cost basis on the rates as decided by the District level Society.

34.

Issue and requisition of Summons.

(1)

Summons under Section- 75(4) shall be issued by the Registrar according to the procedure prescribed in orders V and XVI in the 1st schedule to the Code of Civil Procedure 1908.

(2)

Every application to a Registering Officer to procure the issue of summons under Section- 36 shall be accompanied by the sum required for the payment of expenses of the person whose appearance is desired and also the peon's fee fixed by the rules governing the officer or Court who is to issue summons.

(3)

The Registering Officer shall forward a draft summon in duplicate with a forwarding letter to the officer or the Court.

(4)

The sub-registrar shall ordinarily make requisition for issue of summons to the Sub- Divisional Magistrate of his jurisdiction.

35.

Production of registers in Courts.

(1)

The Record Keeper or any senior clerk of the office duly authorized by the Registering Officer shall produce Register-Books whenever they are required to be produced in a Court.

(2)

A register shall be maintained in the office in which letter number and date of requisition from the Court date of production name of the clerk by whom the record was produced and the date of return of the record shall be entered by the record keeper and shall be signed and dated by the record keeper and the Registering Officer.

36.

Seals.

(1)

The Sub Registrar may authorize any responsible staff of his office to be in the custody of his seal prescribed in

Section-15 of the Act and to put it under his signatures on the documents and papers wherever required.

(2)

Such Seals which have become unfit for use shall be destroyed by the District-Sub Registrar only and a record of the same shall be maintained.

37.

Office Hours.

- The Registering Officer and all his subordinates shall be present in his office during office hours on all working days.

Chapter - VIII 38. Record rooms.

- There shall be a record room at each sub registration office where all manual and electronic records shall be kept and maintained by every Sub Registrar in accordance with the instructions issued by the Inspector general of Registration from time to time.

39.

Records to be kept in the Registration Offices.

(1)

Each District Sub Registrar's office shall be a central office of electronic data for the district and the database of the subordinate offices shall be transferred in its own data base before being forwarded in the CDDVD or any electronic form meant for the office of the Inspector of Registration Offices.

(2)

All Registering Officers shall maintain electronic records as well as Books and Registers of hard copies in their offices as prescribed in rule 42.

(3)

The electronic data pertaining to the transactions of a sub-registry office shall also be kept in the office of the Registrar in the manner prescribed in sub-rule (5).

(4)

The CDs-DVD or the electronic record shall be prepared of the electronic database of pdf files of Books and Registers and scanned registered documents by each office. One copy of the CD-DVD or any electronic form shall be sent to the office of the Inspector of Registration Offices through the District sub- registrar and the other copy of the CD shall be sent to the Inspector General of Registration directly by the Registering Officer at a frequency directed by the IGR.

(5)

The CDs-DVDs or any electronic record for data base registers and scanned registered documents shall be label-ed in Form-12(a) 12(b) &12(c) as prescribed in Appendix-A respectively.

(6)

The database CDs-DVDs or any electronic form shall be written each month in 3 copies. CDs for electronic files of Books and Registers shall be written as prescribed in rule 42. in one copy as per the requirement of the office. The pdf files of all Books and Registers of a registering office shall be written on CD in 3(three) copies at a frequency mentioned in rule- 42. Remaining two copies shall be sent to IRO and IGR respectively for preservation at the end of the calendar year.

(7)

Each office of the District sub- Registrar shall be a central office of electronic database for the district and the database of the subordinate offices shall be transferred in its own database before forwarding the CD-DVD or any electronic form meant for the Inspector General of Registration.

(8)

The Registering Officers shall be responsible for ensuring that the CDs are written and transmitted in time and the Books and Registers of hard copies are bound regularly.

(9)

Every Registering Officer shall be responsible for the preservation and safe custody of registration records including those of previous years which have been accumulated in or have been transferred to his office.

40.

Preservation and maintenance of Registers.

(1)

The Books and the Registers to be maintained as computer files and the manner and frequency of printing of those hard

copies which are required shall be in accordance with following table:--

Sl. No

Name of Register

Frequency of generation of pdf file

Hard copy of pdf file to be printed or not ?

Frequency of printing of hard copy

1

2

3

4

5

1.

Book I

After about 600 pages

No

Record wise

2.

Book III

After about 100 pages

"

"

3.

Book IV

"

"

"

4.

Book V

Annually

Yes

Annually

5.

Index I, II, III and IV

"

No

No

6.

Catalogue Register

"

Yes

Annually

7.

Fees Book (including stamp duty BT Act &
service charge)

Monthly

No

Daily

8.

Pending Register

Annually

"

No

9.

Book II- Refusal Register (manual orders of
Registering Officers entered in the computer)

Annually

"

Case wise

10.

Register of Power of Attorney

"

"

"

11.

Register for Searches and Copies

Monthly

"

Application wise

12.

Visit Register

Annually

"

"

13.

Register of reference of documents u/s 47-A and
impounding of documents u/s 33 of the Indian Stamp Act 1899

Annually

"

Case wise

14.

Register of Finger prints/Thumb impression

Monthly

"

No

15.

Registers of documents received under Sec.
17(2), Sale certificates and memoranda

Annually

"

"

Explanation. - (1) Column 4 indicates that hard copy of pdf files of certain books and registers shall not be required to be printed. Column 5 indicates that some of these registers shall be prepared manually in folders by their printouts taken on case to- case basis.

(2)

The Registering Officer shall ensure that entries endorsements and necessary information required for maintaining all Books and Registers are entered in the computer every day.

(3)

The printout of the information retrieved from them by the Registering Officer and certified by him shall be deemed to be true copy of the original record for the purposes of proving their contents under Indian Evidence Act.

(4)

Following books and registers shall be maintained manually also:--

(a)

Book I III and IV,

(b)

Catalogue Register (in form no-1 in Appendix-E),

(c)

CD Register (in Form no-4 in Appendix- E),

(d)

Fee Book (in Form no-5 in Appendix- E),

(e)

Book II (in Form no-5 in Appendix-A),

(f)

Register for searches and copies (in Form no-3 in Appendix-E),

(g)

Visit and commission Register (in Form no-6 in Appendix-E),

(h)

Register of reference of documents u/s 47-A (in Form no-7 in Appendix-E,) and register of impounding of documents u/s 33 of the Indian Stamp Act 1899(in Form no-8 in Appendix-E),

(i)

Cash Book (in Form no-9 in Appendix-E),

(j)

Pending Register (in Form - 11 of Appendix - E),

(k)

Stock book of furniture and other non-perishables items (in Form no- 12 (1) of Appendix- E),

(l)

Stock Book of Perishable and consumable items (in Form no- 12 (2) of Appendix-E).

Explanation. - Their shall be separate stock books of perishable and consumables of District level society and Registering officers shall be responsible for ensuring that items purchased by the society are not entered in the book of the Registry office and vice versa.

(5)

The registers shall be preserved as classified in Appendix- F of these Rules.

41.

Comparison of books with catalogues.

(1)

Whenever a Registering Officer shall hand over charge of his office to other sub registrar or the District Sub Registrar the officer receiving charge shall compare the books kept in the record room of his office with the catalogue register and make a note on the register that he has found the stock of the books complete in the catalogue.

(2)

A CD Register shall be maintained in Form no--4 in Appendix--E containing details of CDs prepared stored and remitted to the District Sub Registrar's office for Inspector of Registration Offices and Inspector General of Registration. The Registering officer shall keep the CDs-DVDs or any electronic record stored in his office in the charge of a responsible staff.

(3)

The staff taking over charge shall compare and verify the CDs with the CD Register maintained under sub-rule (2) above and hand over to them to his successor on proper receipt in the CD Register.

(4)

The CDs-DVDs or the electronic records shall be preserved as most valuable items and the Registering officer shall be responsible for protecting them from damage from moisture heat electric or magnetic effects etc.

42.

Destruction of unclaimed documents.

(1)

Registered/refused documents (other than wills) remaining unclaimed in any registration office for a period exceeding two years will be destroyed with the approval of the Inspector General of Registration:-

Provided that documents related to the Government authorities may be sent to the concerned office or the concerned department.

(2)

The wills and cancellation of wills that remains unclaimed whether registered or refused shall not be destroyed and shall be kept in the office in safe custody.

43.

Conditions precedent to destruction.

(1)

Before any document is destroyed a notice shall be displayed and published at some conspicuous place and as far as possible on the Internet in the office by the Registering Officer.

(2)

In January of each year a list of old records and unclaimed documents to be destroyed after expiry of the period as described in Appendix-F shall be prepared in each sub-Registry office and shall be sent to the Inspector General of Registration for orders of destruction.

(3)

As soon as the approval of the Inspector General of Registration for destruction is received the records shall be destroyed and a note to this effect shall be recorded signed and dated by the sub registrar in the destruction register.

44.

Refunds.

(1)

In case a person deposits the registration fee and other fees for registration of a document in the Bank in advance through the Bank Challan and due to some unavoidable reasons fails to get his document registered the fees deposited by him may be refunded in the same manner as the refund of unused and spoilt stamp papers.

(2)

The person claiming refund of registration fee shall apply to the collector in Form no-13 of Appendix-E.

(3)

Each Registering Officer shall send a monthly statement of refund to the Inspector General of Registration in Form No-14 of Appendix-E.

Chapter - IX 45. Power of Inspector General of Registration to issue instructions.

(1)

The Inspector General of Registration shall have the power to issue instructions from time to time consistent with the Act and these Rules.

(2)

Instructions issued by the Inspector General of Registration shall have the force of standing orders and shall be complied by the Registering Officers and other officers of the Registration Department.

(3)

The Inspector General of Registration shall specify from time to time the configuration of hardware and the software to be used in registration offices of the state as may be required for the computerized system of registration.

(4)

The state level society shall ensure supply of hardware and the software for computerized system of registration at all registration offices.

46.

Repeals.

- The Bihar Registration Rules 1937 shall be repealed with effect from the date on which these rules come into effect.

47.

Savings.

- Nothing shall invalidate the registration of documents through the Bihar Registration Rules 1937 and through computerized system of registration and other acts relating thereto prior to coming of these rules into effect.

Appendix - A

Form No. - 1

[See Rule - 4 (2)]

Under Rs. (in words) only

Original copy

(for the use of Accountant Generals office)

Government of Bihar

Department of Registration Excise & Prohibition Non standard

(Registration)

Bank challan for payment of Stamp duty/Registration fee and Land Lords Registration fee for registration of instruments.

1.

Name/address of the party

(on whose behalf it is being deposited).....

2. Kind of document

3. Registration office

4.

Name of the Bank and Branch

5. Details of amount to be paid

Sl. No.

Item of payment and head

Amount

(1)

(2)

(3)

(a)

Stamp duty- Major Head-0030-Stamp and Registration-Sub Major Head-02-Stamp Non-judicial Minor Head-103-payment of stamp duty on instruments- Sub-Head-0001-Total receipt primary unit- 75 49- Total receipt- Bill code- R0030021030001

(b)

Registration fee - Major Head-0030-Stamp and Registration-Sub-Major Head-03-Registration fee-Minor Head-104-Registration fee for registration of documents-Sub-Head-0001-Total receipt Primary unit- 75 49-Total receipt- Bill code- R0030031040001

(c)

Land Lord's fee - Major Head-0029-Land Revenue Minor Head-800-other receipts - Sub-Head-0006-Other receipt - Primary unit- 75 49-Income from registration of Land. Bill code- R0029008000006

Mode of payment :

Case/Cheque/Draft/

Grand Total

Total Amount in words

.....

Place :

Date :

Name and Signature of depositor

* Give detail of cheque/Draft on the back.

* Cheque/Draft shall be acceptable only after transfer.

For Use of The Bank

Scroll No. Date Received Rs.

(in words Rupees) as per detail given in above column 5.

Seal & signature of the authorized officer

Appendix- A

Form No.- 1

[See Rule - 4 (2)]

Under Rs. (in words) only

Second copy

(for the use of Treasury)

Government of Bihar

Department of Registration Excise & Prohibition Non Standard

(Registration)

Bank challan for payment of Stamp duty/Registration fee and Land Lords Registration fee for registration of instruments.

1. Name/address of the party.....

(on whose behalf it is being deposited).....

2. Kind of document

3. Registration office

4. Name of the Bank and Branch

5. Details of amount to be paid

Sl. No.

Item of payment and head

Amount

(1)

(2)

(3)

(a)

Stamp duty- Major Head-0030-Stamp and Registration-Sub Major

Head-02-Stamp Non-judicial Minor Head-103-payment of stamp duty

on instruments- Sub-Head-0001-Total receipt primary unit- 75 49-

Total receipt- Bill code- R0030021030001

(b)

Registration fee - Major Head-0030-Stamp and Registration-Sub-

Major Head-03-Registration fee-Minor Head-104-Registration fee

for registration of documents-Sub-Head-0001-Total receipt Primary

unit- 75 49-Total receipt- Bill code- R0030031040001

(c)

Land Lord's fee - Major Head-0029-Land Revenue Minor Head-

800-other receipts - Sub-Head-0006-Other receipt - Primary unit-

75 49-Income from registration of Land. Bill code- R0029008000006

Mode of payment :

Case/Cheque/Draft/

Grand Total

Total Amount in words

.....

Place :

Date :

Name and Signature of depositor

* Give detail of cheque/Draft on the back.

* Cheque/Draft shall be acceptable only after transfer.

For Use of The Bank

Scroll No. Date Received Rs. (in words Rupees) as per detail given in above column 5.

Seal & signature of the authorized officer

To be maintained by the Bank Detail of deposits against service charge for Registration Name & Address of the

depositor
 Amount Rs. /In word ESCRO Account No.....
 Date of deposit :
 Bank Scroll No.
 Seal & Receipt of the Bank
 * (Number of pages of the document + 2) X Rs. 20/-
 Appendix- A
 Form No.- 1
 [See Rule - 4 (2)]
 Under Rs. (in words) only
 Third copy
 (for the use of Registry office)
 Government of Bihar
 Department of Registration Excise & Prohibition Non standard
 (Registration)
 Bank challan for payment of Stamp duty/Registration fee and Land Lords Registration fee for registration of instruments.
 1. Name/address of the party
 (on whose behalf it is being deposited).....
 2. Kind of document
 3. Registration office
 4. Name of the Bank and Branch
 5. Details of amount to be paid
 Sl. No.
 Item of payment and head
 Amount
 (1)
 (2)
 (3)
 (a)
 Stamp duty- Major Head-0030-Stamp and Registration-Sub Major
 Head-02-Stamp Non-judicial Minor Head-103-payment of stamp duty
 on instruments- Sub-Head-0001-Total receipt primary unit- 75 49-
 Total receipt- Bill code- R0030021030001
 (b)
 Registration fee - Major Head-0030-Stamp and Registration-Sub-
 Major Head-03-Registration fee-Minor Head-104-Registration fee
 for registration of documents-Sub-Head-0001-Total receipt Primary
 unit- 75 49-Total receipt- Bill code- R0030031040001
 (c)
 Land Lord's fee - Major Head-0029-Land Revenue Minor Head-
 800-other receipts - Sub-Head-0006-Other receipt - Primary unit-
 75 49-Income from registration of Land. Bill code- R0029008000006
 Mode of payment :
 Case/Cheque/Draft/
 Grand Total
 Total Amount in words

 Place :
 Date :
 Name and Signature of depositor
 * Give detail of cheque/Draft on the back.

* Cheque/Draft shall be acceptable only after transfer.

For Use of The Bank

Scroll No. Date Received Rs.

(in words Rupees as per detail given in above column 5.

Seal & signature of the authorized officer

Appendix- A

Form No.- 1

[See Rule - 4 (2)]

Under Rs. (in words) only

Forth copy

(for the use of Depositor)

Government of Bihar

Department of Registration Excise & Prohibition Non Standard

(Registration)

Bank challan for payment of Stamp duty/Registration fee and Land Lords Registration fee for registration of instruments.

1. Name/address of the party

(on whose behalf it is being deposited).....

2. Kind of document

3. Registration office

4. Name of the Bank and Branch

5. Details of amount to be paid

Sl. No.

Item of payment and head

Amount

(1)

(2)

(3)

(a)

Stamp duty- Major Head-0030-Stamp and Registration-Sub Major
Head-02-Stamp Non-judicial Minor Head-103-payment of stamp duty
on instruments- Sub-Head-0001-Total receipt primary unit- 75 49-
Total receipt- Bill code- R0030021030001

(b)

Registration fee - Major Head-0030-Stamp and Registration-Sub-
Major Head-03-Registration fee-Minor Head-104-Registration fee
for registration of documents-Sub-Head-0001-Total receipt Primary
unit- 75 49-Total receipt- Bill code- R0030031040001

(c)

Land Lord's fee - Major Head-0029-Land Revenue Minor Head-
800-other receipts - Sub-Head-0006-Other receipt - Primary unit-
75 49-Income from registration of Land. Bill code- R0029008000006

Mode of payment :

Case/Cheque/Draft/

Grand Total

Total Amount in words

.....

Place :

Date :

Name and Signature of depositor

* Give detail of cheque/Draft on the back.

* Cheque/Draft shall be acceptable only after transfer.

For Use of The Bank

Scroll No. Date Received Rs. (in words Rupees) as per detail given in above column 5.

Seal & signature of the authorized officer

To be maintained by the Bank Detail of deposits against service charge for Registration Name & Address of the depositor Amount Rs. /In word ESCRO Account No.....

Date of deposit :

Bank Scroll No.

Seal & Receipt of the Bank

* (Number of pages of the document + 2) X Rs. 20/-

Government of Bihar

Form no..2 / Appendix-A [See Rule - 7 (6)]

Registry Office.....

Receipt under

section 52 clause (b)

Government of Bihar

Form no-2 / Appendix-A [See Rule - 7 (6)]

Registry Office.....

Receipt under

section 52, clause (b)

Token No.

Token No.....

Serial No.....

Serial No.....

Filing

date.....

Filing

date.....

Document No.....

Document

No.....

Book

No.....

Book

No.....

Document presented by.....

Document presented by.....

Executed by

Executed

by.....

In favour of.....

In favour of.....

Fee Details

Fee Details

.....

.....

Fee articles

Fee articles

Amount paid

Amount paid

Fee A(1).....
 Fee A(1).....
 Fee (A3).....
 Fee A(3).....
 Fee A(8).....
 Fee A(8).....
 Fee A(9).....
 Fee A(9).....
 Fee A(10).....
 Fee A(10).....
 DD.....
 DD.....
 Fee E.....
 Fee E.....
 Fee I.....
 Fee I.....
 Fee J(1).....
 Fee J(1).....
 Fee J(2)..
 Fee J(2).....
 Fee K(1)a.....
 Fee K(1)(a).....
 Fee K(1)b.....
 Fee K(1)(b).....
 Fee K(1)c.....
 Fee K(1)(c).....
 Fee K(2).....
 Fee K(2).....
 Fee L(i).....
 Fee Li.....
 Fee L(ii).....
 Fee Lii
 Fee L(iii).....
 Fee Liii.....
 Fee M-(b).....
 Fee M(b).....
 Fee N(a).....
 Fee N(a)
 LLR
 LLR.....
 Proc Fee
 Proc Fee.....
 Service charge.....
 Service charge.....
 Total.....
 Total.....
 Dated.....
 Sub-Registrar
 Dated.....
 Sub-Registrar

Received document

Appendix- A

Form No.- 3

[See Rule- 9 (4) and Rule 25 (1)]

Endorsement of Certificate of Admissibility-Form no.- 3 (a)

Admissible under Rule 5 duly stamped (or exempted form or does not require stamp duty) under article.....of Schedule-I-A of the Indian Stamp Act 1899 also admissible under section 26(a) of the B.T.Act

Stamp duty paid under Indian Stamp Act Rs.....

Addl. Stamp duty paid under /Municipal Act Rs.....

Fee Paid

Registration fee

LLR+Process fee

Service charge

Total

Total amount Paid(Regn.fee+LLR-Proc+service charge).....

Date:.....

Registering Officer

Endorsement under section 52 ---Form no-3(b)

Presented for registration at Registration Office at.....on..... by
Shri/Smt.....Son/wife of Shri..... by
profession.....Status-executant/claimant/representative /agent for Shri one of the
executants/claimants vide Deed no.of year.....Registered at.....

Signature/ L.T.I of Presentient

Registering Officer

Endorsement under section 58-Form no.- 3 (c)

Execution is admitted by those executants and identified by the person whose names photographs fingerprints and signatures are affixed as such on the back page/pages of the instrument.

Date:

Registering Officer

Endorsement of Certificate of Registration under section 60-Form no.- 3 (d)

Registered at Registration office..... in Book no.Volume no.on page no. For
the year..... and stored in CD Volume No.Year..... The document no. is printed on the front page
of the document.

Date:

Registering Officer

Appendix - A

Form No. - 4

[See Rule- 9 (7)]

Summary of Endorsement

This document was presented for registration on this day by Shri/Shri mati
..... . A stamp duty of Rs. and other fees of Rs. has been
paid in it The document was found admissible The names photographs and finger printers and signatures of the
executants and their identifier Who have admitted execution before me are affixed on the reverse page.

This document has been registered as deed no. in Book No. Volume no. on
pages fromto and has been preserved in total pages in C.D. No. /Year
.....

Signature with date

.....

Date :

(name of the registering officer)

Registering officer

Place

Appendix - A

Form No. - 5

[See Rule - 20 (3)]

Record of reasons for refusal to register

Refusal No.

Year-

Date of the execution of instrument

and names of

executants. Reason for refusal

Registering Officer.

Dated

.....

Date of communication of the order of refusal.

Date of application for copy of the reasons
for refusal.

Date on which the copy was furnished to the
applicant

Note of the result of appeal to the Registrar
under section 72 or of application under section 73.

Note of any order of Court

Date of presentation.

Name of the presenting party.

Name of the claimant.

Appendix-A

Form No.- 6

[See Rule - 25 (3)]

Endorsement by registering officer under section 38 (2) under section 33 (3) or (38)2.)

Today onI Registering officer.....visited the residence of Shri/Smt.....Son/
wife/daughter of Shri.....by profession..... at.....and examined said
Shri/Smt..... who has been identified by Shri..... son of Shri
..... Resident of village/Muhalla/P.S.....Town.....
District..... by profession.....and said Shri/Smt..... admitted / or denied the execution of
this power / or document.

Full signature and thumb impression of executant.

Ditto ditto of witness or witnesses

Registering Officer. /Commissioner

Appendix-A

Form No.- 7

[See Rule - 25 (3)]

Endorsement under section 41.

From the evidence of Shri.....,son of Shri..... I am satisfied (1) that this will (or authority)
was executed by Shri..... son of.....of the testator (or donor) ; (2) that the said testator (or
donor) is dead; and (3) that Shri..... son of.....,the presentient is entitled to present it
under section 40 Act XVI of 1908 and I accordingly admit it to registration under section 41 of the Act.

Signature of Registering Officer

Appendix - A

Form No.- 8 (a)

[See Rule- 25 (5)]

Presented for deposit at A.M./P.M. on the day of20 at the registry office (or else where) by son of aged by profession testator (or agent fortestator under a power of attorney no.). He is personally known to me or has been identified to my satisfaction by son of resident of This cover has been sealed in places the inscription on the sealer being.

Signature of Registering Officer

Appendix - A

Form No.- 8 (b)

[See Rule - 25 (5)]

Having satisfied my self that the testator hereof is dead the sealed cover containing this will is opened this the day of 200.....,

On the application and in the presence of(name and addition).

Signature of applicant

Signature of Registering Officer

date-

Seal

Appendix - A

Form No. - 9

[See Rule - 26 (2)]

Record of Oath.

I S/o swear in the name of God that the evidence which I shall give in this case shall be true that I will conceal nothing and that no part of my evidence shall be false.

So help me God.

Signature

Affirmation

I S/o solemnly declare that evidence which I shall give in this case shall be true that I will conceal nothing and that no part of my evidence shall be false.

Signature

[Christian witnesses to whom oaths are administered are to be sworn upon the New Testament. In other cases the oaths are to be administered upon such symbol or accompanied by such act as may be usual or as such witness may acknowledge to be binding on his conscience.]

Appendix - A

Form No. 10

[See Rule - 27 (3)]

Endorsement on authentication of power-of-attorney.

(a)

When the principal executing the power appears at the registration office :-

Executed in my presence on the day of 19 by Shri..... son of /husband of.....resident of.....,by profession whose identity was proved by the testimony of Shri..... son of.....and I accordingly authenticate it under section 33 Act XVI of 1908 and record it as no. for 19.

Full signature and thumb impression of principal.

Ditto

ditto

of witness or witnesses.

Seal and signature of registering officer.

Date :

(b)

When the principal is exempted from appearance : -

Having visited and examined at his/ her residence the principal Shri/smt..... son/ daughter/wife of Shri.....Resident of by profession whose identity was proved by the evidence of

E F Shri.....son of..... H G resident of..... I am satisfied that this power-of-attorney has been voluntarily executed by him/ her and accordingly authenticate it under section 33 of Act XVI of 1908 and record it as no.

Full signature and thumb impression of principal.

Ditto

ditto

of witness or witnesses.

Date :

Seal and signature of registering Officer.

Appendix- A

Form No. - 11

[See Rule - 28]

Endorsement on use of a special power of attorney

Presented this day in connection with the registration of document bearing serial no.

..... for

Date :

Seal and signature of registering officer.

Appendix- A

Form No. 12 (a)

[See Rule - 39 (5)]

Labelling of Data Backup Files

Name of registration office This Cd/dvd contains totaldata backup files of period dated to in MB/GB.

Signature of authorized clerk

Appendix- A

Form No. 12 (b)

[See Rule - 39 (5)]

Labelling of Registers

Name of registration office

This CD/DVD contains totalregisters namely of period dated toinMB/GB.

Signature of authorized clerk

Appendix - A

Form No. 12 (c)

[See Rule - 39 (5)]

Labelling of Scanned Registered Documents

Name of registration office

This CD/DVD contains totalscanned registered documents no.....to of period dated to in MB/GB.

Signature of authorized clerk

Appendix- A

Form No. 13

[See Rule - 27 (4)]

Register of Powers-of-Attorney.

Registration Office

Serial number for the year.

Names and additions of principals.

Names and additions of attorney.

Names and additions of witnesses and identifiers.

Date of authentication.

Abstract.

1
2
3
4
5
6

Copy of footnote. Sub-Registrar.

Appendix- A

Form No.- 14

[See Rule - 29 (8)]

(Book - V)

Register of deposit of wills.

Office of the Registrar of

Serial on of will deposited.

Year month day and hour.

Name and address of the testator and of his
agent when the will is deposited by an agent of the testator.

Names of the persons identifying the
depositor.

Copy of superscription on the sealed cover.

Copy of inscription (if any) on the seal.

1
2
3
4
5
6

Date of order or withdrawal under section 44.

Date of application to open the cover under
section 45.

Date on which the sealed cover is opened.

Date on which the sealed cover in Book no. 3
under section 40 or section 46 and its serial number therein.

Date on which the will is removed into Court
under section 46.

Remarks.N. B. - The Registrar's signature
should be appended with date to entries in columns 5 and 6 and
his signature ort initial to those in columns 7 to

7
8
9
10
11
12

Appendix-B

[See Rule - 7 (3)]

Memo of Presentation of Document

Token No.

:

Filed on.

:

1.

Document Detail

:

SRO Office.

.....

Challan Amount.....

Challan No.....

Reg. Year.

:

Date of deposit.....

Transaction.

:

2.

Presentient Detail

: Presented by Executant Self

Name.....

Sex.....

Profession :

F/H Name. :

Status-----

executant / claimant / agent/ attorney

Address. :

Status

: executant himself/ attorney of executant/

claimant (tick the right status)

3.

Party Detail:

Executant. :

Sex:

Profession :

Fath./Hus. Name. :

Address. :

4.

Total No. of Property :

Property No. :

i. Property Detail:

Circle :

Corp/Mun./NAC:

Tauji No. :

Thana No. :

Ward No. :

Seat No. :

Mauja :

Hold. No. :

Khata No. :

Land use :

House No. :

P.No./M.Pl.No.:

Local Body :

Flat No. :

Khewat No. :

Boundary

East :

West :

North :

South :

ii. Calculation of chargeable value :

a. Total area of land :

Decimal

ai. Area in Decimal:

b. Minimum Value (MVR) :

Rs. Per decimal

c. Total value as per MVR :

Rs. (ai x b)

d. Consideration Value :

Rs.

e. Chargeable Value :

Rs.

iii. Fee Detail :

a. Stamp Duty Required :

Rs.

b. Add. Stamp Duty :

Rs.

c. Total Stamp Duty :

Rs. (a +b)

d. Reg. Fee :

Rs.....

5.

Total Detail of payment of Fee :

(a) Challan No. :.....

Challan Date :

Bank Code :

Stamp Duty

Reg. Fee

LLR &Pro. Fee

ESCROW/service charge

Total

Required :..

Paid :.....

Balance :..

6.

List of enclosures attached:

- Declaration u/s 16 of BLR FCA,ASL Act 1961 in case of Rural

- Notice u/s 12,18 and 26A of BT Act

- Declaration in Form 4 under Bihar Stamp Rules 1995.

7.

Please tick one of the followings: --

Declaration : --

a. I have paid the required stamp duty and

registration fee. Please register my instrument.

b. I do not consider balance stamp duty stated
in para 5 to be reasonable. Please refer the matter to the
Collector u/s 47-A.

Signature of the Presentient

Appendix - C

[See Rule - 7 (1)]

Enclosures: Cheek ship

date :

1.

Property detail Name of Mouza

.....

Yes / No

Name of Anchal

.....

Yes / No

Name of District

.....

Yes / No

Name of S.R.O

.....

Yes / No

Location of road

.....

Yes / No

Kind of properly

.....

Yes / No

Nature of use

.....

2.

Payment of fees Stamp duty paid

.....

Registration fee paid

LLR / P. fee paid

.....

Date of payment

Copy of bank challan enclosed

Appendix - D

Form No-I

[See Rule - 22 (1)]

Index - I

Office of the District sub-registrar/Sub-registrar.....

Name of party

Status of party

Father'same/Husband's name

Address

Name of registration office

Serial no of document

1

2

3
4
5
6
6
6
7
8
9
10
11
12
Appendix - D
Form No - II
[See Rule - 22 (1)]
Index - II
Office of the District sub-registrar/Sub-registrar
Token no.
Date of filing
Deed no.
Date of registration
Mouza/ Muhalla
Thana no./ Ward no.
Revenue circle
Khata no.
1
2
3
4
5
6
7
8
Plot no. /Holding
no.
Area in Decimal/
square feet
Road-wise location
CD No.
Total pages
Property type
Use of land
In case of
structure the year of construction
9

10
11
12
13
14
15
16

Appendix - D

Form No-III

[See Rule - 22 (1)]

Index - III

Office of the District sub-registrar/Sub-registrar

Token no.

Filing date

Deed No.

Date of registration

Name of the party

Status

1
2
3
4
5
6

Father's/ Husband's Name

Address

C D no.

Page no.

Volume No/ Year

Page from-----to-----

7
8
9
10
11
12

Appendix - D

Form No-IV

[See Rule - 22 (1)]

Index - IV

Office of the District sub-registrar/Sub-registrar

Token no.

Filing date

Deed No.

Date of registration

Name of the party

Status

1
2
3
4

5

6

Father's/ Husband's Name

Address

C D no.

Page no.

Volume No/

Year Page from-----to-----

7

8

9

10

11

12

Appendix-E

Form No.- 1

[See Rule - 40 (4)]

Catalogue of books/Registers.

Serial no.

District or sub-district to which the
book-relates.

Date when opened.

Title of book.

Volume.

1

2

3

4

5

Number of documents etc. in each.

Number of pages written on.

Number of

Remarks.

Back.

Shelf.

6

7

8

9

10

Appendix-E

Form No. - 2

[See Rule - 32 (1)]

Application for search /certified copy.

Office of District sub registrar/ Sub-registrar-----

Date of Application----- Serial no. of application-----

Name of applicant

Status-Executant/ claimant/Other party

Purpose--for search/ for copy/ Both search and
copy

Detail of document

Document no.

Date and year of registration

Name of office where registered

Executant's name

Claimant's name

1

2

3

4

5

6

7

8

Details of fee paid

Date on which search made

Date of delivery of certified copy

Signature of applicant on receipt of copy

Searching fee

Copying fee

Total amount of fee paid

Name of Bank where deposited

Date of deposit

Challan no. & date

9

10

11

12

13

14

15

16

17

.....
Acknowledgement of Application & Fee

Office of the district sub registrar/ sub registrar-

Application no.....,Date of application.....,Name of applicant.....,Purpose of application----

Search/ for certified copy Deed no..... Year.....Office of registration.....Fee paid- Searching fee.Rs..... Copying fee.Rs..... Total Rs..... .

Signature of Record Keeper

Appendix-E

Form No.- 3

[See Rule - 32 (6)]

Register of applications for search and copy.

Serial number of application.

Date of application.

Whether for search or for inspection or for copy.

Name and of address applicant.

Interest of applicant in document. etc.

whether executant or claimant.

Particulars furnished by applicant for identification of document.

Reference to his previous application (if any).

Under F(1)(i) and (ii)

1
2
3
4
5
6
7
8

Fees paid.

Date of payment.

Date of search.

Result of search etc. successful or unsuccessful otherwise.

Date on which stamps deposited.

Under F(1)(iii)

Under G.

Under G(a).

9
10
11
12
13

Date on which copy was prepared.

Date on which copy was delivered.

Signature of applicant for search.

Signature of applicant and date on receipt of an attested copy.

Remarks (with Sub-Registrar's initials.)

14
15
16
17
18

Appendix- E

Form No. - 4

[See Rule - 40 (4)]

Register of CD/DVD.

Registration Office

Sl. No.

Description of data stored

Period of data

Date of writing CD/DVD

Total space written on CD/DVD

Date on which CD/DVD sent to District

Sub-Register Inspector of Registration Offices/Inspector General of Registration

Signature of authorized clerk

1
2
3
4
5
6
7

Appendix -E

Form No-5

[See Rule - 40 (4)]

Fee Book of Date:

Office of the District sub-registrar/Sub-registrar

Token no. and year

Date of presentation

Presentient's name and status

Type of document

Value of the document on which stamp/fee paid

Registration fee/ article and amount

LLR /Process fee.

1
2
3
4
5
6
7

Stamp duty by paper

Stamp duty by challan

Total Stamp duty

Stamp under I.S.Act

Additional stamp duty

Date of registration

Serial no. of deed

8
9
10
11
12
13
14

Deed no.

Book No./Volume no.

CD Volume No./Year

Revenue Anchal/Mouza

Challan no. and date of deposit of stamp duty

/ and registration fee

Remarks

15
16
17

18

19

20

Appendix- E

Form No.- 6

[See Rule - 40 (4)]

Register of Visits and Commissions.

Registration Office

Serial no.

Date of application.

Date of visit.

Name of person to be examined.

Place of residence.

Cause of visit under section 31 or of visit or
commission under Section 33 or section 38.

1

2

3

4

5

6

Fees paid under Articles J and K.

Amount of traveling allowance paid.

Signature of applicant.

Name of person by whom the visit is paid.

Register number of the deed and the volume in
which it is copied.

Remarks.

7

8

9

10

11

12

Appendix- E

Form No. - 7

[See Rule - 40 (4)]

Register of reference of documents u/s 47-A of the I.S. Act 1899.

Registration Office.....

Serial no. of case referred

Date of execution

Date of presentation

Date of registration Deed no.

Name and address of executant

Name and address of claimant

Area transferred

Value set forth in the instrument

1

2

3

4

5
6
7
8

Letter no. & date of reference
Estimated market value
Market value fixed by the Collector
Difference of stamp duty paid
Date of return of document
Date of appeal if any
Remarks

9
10
11
12
13
14
15

Appendix-E

Form No.- 8

[See Rule - 40 (4)]

Register of documents impounded.

Registry office

Serial no.

Date of
presentation

Nature of document

Name of parties

By whom presented

Amount of
consideration

Stamp affixed

From-

To-

1
2
3
4
5
6
7
8

Date on which document was sent to Collector

Date on which it was received back

Stamp adjudicated

Penalty imposed

Date on which notice issued to the presentient
for deposit of fees etc.

Date on which it was admitted to or refused
registration

Number of the document and the volume in which

registered or number in Book no. 2

Remarks

9

10

11

12

13

14

15

16

Appendix-E

Form No. - 9

[See Rule - 40 (4)]

Cash Book of Registration Office Date:

Amount received

Head of Account

Items

Total

Receipt credited into Government Account

1

2

3

4

5

To whom paid

On what Account

Payments from Permanent Advance

Total Expenditure

Total balance in hand

6

7

8

9

10

Signature of Registering Officer

Signature of in-charge clerk

Appendix - E

Form No. 10

[See Rule - 23 (1)]

Memorandum of Document.

Registration office

Nature of document date on which the document
was admitted to registration and endorsement of certificate of
registration on the document.

Names and addresses of parties.

Short name of property effected and tauzi
number (where possible).

Amount of consideration money.

Executants.

Claimants.

1

2
3
4
5

Signature of Registering Officer

Name of Office.....

Appendix-E

Form No. -11

[See Rule - 40 (4) (J)]

Pending Register of documents.

Registration Office.....

Serial no.

Date of execution

Serial no. of document/ Token No. and date

Name of the presentient

Date of presentation

Fee paid

1
2
3
4
5
6

Reason of pending

Date of admission to registration

Deed no and year

Date of refusal if the registration is refused

Date of refund if any

Remarks

7
8
9
10
11
12

Appendix - E

Form No. - 12 (1)

[See Rule - 40 (4) (k)]

Stock Register of durables valuables and furniture.

Registration Office

Sl. No.

Description of Article and quantity

Price

Date of purchase/Date of supply

Signature of registering officer

Signature of the incharge clerk

1
2
3
4
5

6

Disposal

Certificate of quarterly verification by the

Registering officer

Remarks

Date of disposal

Reason of disposal

Method of disposal

7

8

9

10

11

Appendix - E

Form No. - 12 (2)

[See Rule - 40 (4) (I)]

Stock Book of perishable and consumable items.

Registration Office

Sl. No.

Description of Article and quantity

Price

Date of purchase/Date of supply

Signature of registering officer

Signature of the incharge clerk

1

2

3

4

5

6

Disposal

Certificate of quarterly verification by the

Registering officer

Remarks

Date of disposal

Reason of disposal

Method of disposal

7

8

9

10

11

Appendix - E

Form No.- 13

[See Rule - 44 (2)]

Application for refund of Registration fee & other fees.

To : The Collector

Sir,

I had deposited the Registration fee and other fees for registration of my document as details given below. For some reasons I could not get my document registered.

Kindly refund the amount of registration fee and other fees deposited by me in the Government Account which could not

be used.

Sl. No.

Name & address of applicant and date of application

Applicants status Presentient/

Executant/claimant

Executant's name and address

Claimant's name & address

1

2

3

4

5

Amount deposited.

Date of deposit and name and Branch of the

Bank where deposited

Authority no. and date of Accountant General

Amount of refund paid

Date of payment and signature of the registry officer.

6

7

8

9

10

Registration Fee-

L.L.R. Fee-

Process Fee-

Total-

(in words.-

Signature of the Applicant.

Address.....

Date :

Appendix - E

Form No. - 14

[See Rule - 44 (3)]

Statement of Refund

Sro _____ Dis _____ Month _____

Sl.No.

Application No.

Name of applicant

Status Exe/claimant/Stamp duty

Amount Stamp duty

Registration fee

1

2

3

4

5

6

LLR & Pncen fe.

Date of deposit

Bank name

Reason for refund

Date of order of Refund.

Amount of refund Date of refund

Remark

7

8

9

10

11

12

13

Appendix - F

[See Rule - 40 (5)]

(A)

Records to be preserved permanently.

1. Abolition of
offices.

2. Building cases.

3. Catalogues.

4. Conversion of
office.

5. Destruction list
of old records.

6. Destruction list
of old records and unclaimed documents with orders sanctioning
and report of destruction.

7. Establishment-
Permanent- papers in connection with sanction or alteration of
cadre pay etc.

8. Important
circulars and general letters.

9. Index register of
correspondence.

10. Instructions or references on points of law
or procedure; stamp duty or registration fees.

11. Jurisdiction
cases.

12. Location of
offices or change of headquarters.

13. Opening of new
officers.

14. Orders and
sanction of a permanent character until revised.

15. Qazil's records
under Regulations XXXIX of 1793.

16. Record room
register for appeal cases.

17. Register books of
documents and their indexes kept prior to Act XVI of 1864.

18. Register of Wills

transferred to the Sadr office from the mufassal sub registry office.

19. All petitions of appeals under section 72 and applications under section 73.

(B)

Records to be preserved for 50 years

1. Applications for revocation of Power of attorney.
2. Register of thumb impressions/ finger prints.
3. Register of Power of attorney.
4. Order books.

(C)

Records to be preserved for 35 years.

1. Appointment cases and cases regarding confirmation including first joining or charge reports.
2. Appeals of important nature (including appeals under section 72 of the Indian Registration Act).
3. Orders of Government and of the Accountant-General of important and permanent nature.
4. Printed annual and triennial reports.
5. Register books (except Register of refusals and such volumes of Register books I as consist of file books of memoranda received under section 64, or section 66 of Act VIII of 1871, III of 1877 or scribed by and translations and true copies filed under the various Registration Acts (Acts XVI of 1864 XX of 1866 VIII of 1871 III of 1877 and XVI of 1908).
6. Order books.
7. Transfer of records.
8. Plaints or pleadings.
9. All lists of exhibits and all receipts for returned exhibits,
10. The autographic extract of the evidence.
11. The final judgment and decision or order.
12. The combined title page and fly leaf in which A papers are referred to.
13. The written statement of the defendant or the counter-petition.
14. List of contents.
15. Acquittance Roll of pay and allowances of permanent employees and remuneration of extra clerks

(D)

Records to be preserved for 12 years.

1. Advance for

building purposes.

2. Pending Register

3. Book no. 2

4. Cash book.

5. Dismissal cases

order in respect of which have not been revised.

6. Fee Books

(including those kept under Tenancy Acts).

6. (a) Files and

notifications about transfer.

7. Furniture and

other durable articles supply of.

8. Refund Register

9. Register of

Appeals and application Under section-72.

10. Inspection

reports.

11. Unimportant circulars general letters and

Government orders.

12. All the evidence

oral and documentary on which the subject matter of the case is decided.

13. List of documents

admitted in evidence.

14. All petitions and

papers including those relating to proceedings incidental to the case not specified as included in files A and C.

15. Requisition form

for verification of security bonds.

16. Register of visit

and commission

17. Register of

stationary accounts

18. Expenditure

statements

19. Statement of

remittance to treasury

20. Theft cases

(E)

Records to be preserved for 6 years.

1. Budget files.

2. Contingent

registers.

3. Leave accounts of non-gazetted Government

servants who have retired or died.

4. Pay bills

(excluding those of extra clerks).

5. Pension Cases.

6. Service books of officers dead or retired.

(F)

Records to be preserved for 3 years

1. Leave cases.
2. Maps- supply of.
3. Notices and copies
of notes of Revocation of powers.
4. Pay bills of extra
clerks and other papers relating to the
5. Peon book
Night-watchman's hand book list of unimportant registers.
6. Refunds.
7. Register of
application for search and copy.
8. Register of copies
and memoranda dispatched to other offices.
9. Register of
attendance
10. Application for
issue of summonses and copies of summonses with service returns.
11. Application for
search and copy and for visits and commissions.
12. Acknowledgement
receipt of papers.
13. Account matters
of routine
14. Book binding
cases.
15. Challan books.
16. Charge report.
17. Contingent
expenditure case Diaries of officers.
18. Extra and
temporary establishment cases.
19. Form-Supply of.
20. Indents for forms and stationery.
21. Register of
casual leave.
22. Register of extra
clerks.
23. Register of
accounts of service postage stamps.
24. Register of
records temporarily removed from and brought back into the
record-room.
25. Receipts referred
to in section 52 of the Registration Act.
26. Receipts for
copies memo and sale certificates etc.
27. Receipts for fees
and traveling allowances under section 31 of the Registration
Act.
28. Receipts for fees
paid for search and copy.

- 29. Returns and statements monthly and quarterly.
- 30. Reminders.
- 31. Remarks on annual report.
- 32. Travelling allowance bills and cases relating thereto.
- 33. Tenancy Act notices.
- 34. Charge report.
- 35. Contingent expenditure case
- 36. Diaries of officers.
- 37. Extra and temporary establishment cases.
- 38. Form-Supply of.
- 39. Indents for forms and stationery.
- Related AI tags, queries and research notes
- Translation